

development. In addition, the protection of IPR helps to promote cultural and artistic development. IPR laws and regulations vary from country to country. However, most countries have laws and regulations in place to protect IPR. The protection of IPR is essential for economic growth and development. Without IPR protection, creators and inventors would not have an incentive to invest in their work. This would lead to a lack of innovation and creativity. In conclusion, the protection of IPR has a significant impact on economic growth and development.

Q.10 What is the significance of Intellectual Property Rights (IPR) in promoting innovation and creativity?

Ans. : IPR plays a crucial role in promoting innovation and creativity by providing an incentive for creators and inventors to invest in their work. IPR provides exclusive rights to creators and inventors, allowing them to recoup their investment in research and development. This encourages creators and inventors to continue innovating and creating new works. Furthermore, IPR helps to promote consumer trust and loyalty and can attract foreign investment. IPR also plays a crucial role in promoting entrepreneurship and job creation. In addition, IPR helps to promote cultural and artistic development. The protection of IPR is essential for promoting innovation and creativity. Without IPR protection, creators and inventors would not have an incentive to invest in their work. This would lead to a lack of innovation and creativity. In conclusion, IPR plays a crucial role in promoting innovation and creativity by providing an incentive for creators and inventors to invest in their work.

Q00

Unit 4

4

Treaties and Conventions : WIPO & WTO

Syllabus

Introduction to WIPO & WTO. Treaties, conventions and agreements pertaining to each type of IPR 1. Paris convention, Madrid, Hague, Nice, PCT, Lisbon, Locarno, Strasbourg, Vienna Agreement, Budapest Treaty, Nairobi Treaty.

Contents

- 4.1 Introduction to WIPO and WTO : Treaties, Conventions
- 4.2 Treaties, Conventions and Agreements
- 4.3 Multiple Choice Questions with Answers
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- 4.5 Descriptive Questions and Answers

The global intellectual property landscape is shaped by a complex network of international treaties, conventions and agreements. These agreements establish the framework for the protection and enforcement of intellectual property rights across borders. Two key international organizations play a crucial role in shaping the global intellectual property landscape : The World Intellectual Property Organization (WIPO) and the World Trade Organization (WTO). This chapter provides an overview of the key treaties, conventions and agreements pertaining to each type of intellectual property right, including patents, trademarks, copyrights, designs and geographical indications. Specifically, this chapter will delve into the details of the Paris Convention, Madrid Protocol, Hague Agreement, Nice Agreement, Patent Cooperation Treaty (PCT), Lisbon Agreement, Locarno Agreement, Strasbourg Agreement, Vienna Agreement, Budapest Treaty and Nairobi Treaty. By understanding these international agreements, individuals and businesses can navigate the complex landscape of global intellectual property protection and make informed decisions about protecting their intellectual property rights worldwide.

4.1 Introduction to WIPO and WTO : Treaties, Conventions

- The World Intellectual Property Organization (WIPO) and the World Trade Organization (WTO) play a crucial role in shaping the global intellectual property landscape. Various treaties, conventions and agreements, such as the Paris Convention, Madrid Protocol, Hague Agreement and Patent Cooperation Treaty (PCT), provide a framework for the protection and enforcement of Intellectual Property Rights (IPRs) across borders. This chapter provides an overview of WIPO, WTO and key international treaties and agreements pertaining to patents, trademarks, copyrights, designs and geographical indications.

World Intellectual Property Organization (WIPO)

The World Intellectual Property Organization (WIPO) is a specialized agency of the United Nations (UN) responsible for promoting the use and protection of Intellectual Property (IP) worldwide. With its headquarters located in Geneva, Switzerland, WIPO was founded in 1967.

Mandate and objectives

WIPO's mission is to advance IP usage and protection globally in order to foster economic development, innovation and creativity.

1. Advancing the creation of global intellectual property rules and standards is one of WIPO's goals.
2. Offering developing nations technical support to aid in the development of their intellectual property systems.
3. Facilitating international cooperation on IP matters.
4. Providing a forum for debate and discussion on IP issues.

Structure and membership

WIPO's General Assembly is composed of representatives from its 193 member nations. The General Assembly is WIPO's highest decision-making body and meets annually to discuss and adopt policies and programs. WIPO also has several other bodies, including :

1. The WIPO Coordination Committee, which coordinates the work of WIPO's various bodies.
2. The World Intellectual Property Organization's Patent Committee, which handles issues on patents.
3. The World Intellectual Properties Organization's Trademark Committee, that handles concerns pertaining to trademarks.
4. The World Intellectual Properties Organization's Copyright Committee, which handles issues pertaining to copyright.

Activities and programs

Globally, WIPO promotes the use and safeguarding of intellectual property through a variety of initiatives. Among these programs and activities are :

1. Providing technical assistance to developing countries to help them develop their IP systems.
2. Conducting research and analysis on IP-related issues.

World Trade Organization (WTO)

- The 164 member nations of the World Trade Organization (WTO) are encouraged to engage in free trade and economic cooperation. Established in 1995, the WTO provides a framework for international trade, sets rules for trade between nations and resolves trade disputes. With its agreements and treaties, the WTO aims to promote economic growth, development and cooperation among its member countries.

- The Uruguay Round of trade talks led to the creation of the World Trade Organization, better known as the WTO, on January 1, 1995. The 1947 - created General Agreement on Tariffs and Trade (GATT) was superseded by the WTO.

Mandate and objectives

The goal of the WTO is to encourage economic cooperation and free trade among its member nations.

1. Encouraging free commerce economic cooperation between participating nations is one of the WTO's goals.
2. Promoting the lowering of tariffs and trade restrictions.
3. Providing a forum for trade negotiations and dispute settlement.
4. Promoting economic development and cooperation among member countries.

Structure and membership

Over 98 % of global commerce is conducted by the 164 member nations that make up the WTO. Every two years, the Ministerial Conference convenes as the highest decision - making body of the WTO. In order to supervise the execution of WTO agreements, the WTO also maintains a General Council that meets on a regular basis.

Agreements and treaties

The WTO administers several agreements and treaties related to trade, including :

1. The 1994 World Trade Organization Establishment Agreement.
2. GATT was established in 1947.
3. The General Agreement on Trade in Services (GATS) (1994).
4. The Agreement on Trade-Related Aspects of Intellectual Property Rights (TRIPS) (1994).

3. Providing training and capacity - building programs for IP officials and practitioners.
4. Facilitating international cooperation on IP issues.
5. Providing a forum for debate and discussion on IP issues.

Treaties and conventions

WIPO administers several treaties and conventions related to IP, including :

1. The Industrial Property Protection Convention of Paris (1883).
2. The Berne Convention (1886) for the safeguarding of Artistic and Literary Works.
3. The 1970 Patent Cooperation Treaty, or PCT.
4. The Madrid Agreement (1891) on International Mark Registration.
5. The Hague Agreement on International Industrial Design Deposits (1925).

Thus, WIPO plays a crucial role in promoting the use and protection of IP worldwide. By providing a framework for international cooperation on IP matters, WIPO helps to :

1. Promote innovation and creativity.
2. Encourage economic growth and development.
3. Protect the rights of creators and inventors.
4. Facilitate international trade and investment.

Hence, WIPO is a critical organization that plays a vital role in promoting the use and protection of IP worldwide. Its mandate, objectives, structure and activities all contribute to its mission of promoting innovation, creativity and economic growth.

WIPO is a specialized agency of the United Nations responsible for promoting the use and protection of intellectual property worldwide. WIPO has 193 member nations and was founded in 1967. WIPO's mandate includes promoting the development of international intellectual property laws, providing technical assistance to developing countries and facilitating international cooperation on intellectual property matters.

Dispute settlement

The WTO has a dispute settlement mechanism, which allows member countries to resolve trade disputes through a rules - based system. The dispute settlement mechanism includes :

1. Consultations : Member countries engage in consultations to resolve the dispute.
2. Panel proceedings : A panel of experts is established to examine the dispute.
3. Appellate Body : The Appellate Body hears appeals from panel decisions.

The WTO plays a pivotal role in fostering free trade and economic cooperation among its member countries. By providing a framework for international trade through its agreements and treaties, the WTO effectively promotes economic growth and development, encourages the reduction of trade barriers and tariffs and offers a platform for trade negotiations and dispute settlement. Ultimately, the WTO's efforts culminate in the promotion of economic cooperation and development among its member countries, thereby creating a more stable and prosperous global economy.

Impact and achievements

- The World Trade Organization (WTO) has made significant contributions to promoting free trade and economic cooperation among its member countries. The WTO's notable achievements include reducing trade barriers and tariffs, promoting economic growth and development, establishing a rules - based system for international trade and providing a forum for trade negotiations and dispute settlement.
- The WTO has also helped developing countries by increasing their export opportunities, phasing out quotas on textiles and clothing and reducing customs duties on industrial products. Additionally, the WTO has helped to boost global GDP and stimulate world demand for developing countries' exports.
- The WTO's success can also be seen in its ability to provide a platform for countries to resolve trade disputes peacefully. The WTO's dispute settlement mechanism has helped to reduce trade tensions and promote cooperation among member countries. Overall, the WTO has played a crucial role in promoting free trade and economic cooperation among its member countries.

Challenges and future directions

- The World Trade Organization (WTO) faces numerous challenges in promoting free trade and economic cooperation among its member countries. One of the primary challenges is addressing the rising tide of protectionism, which can hinder global economic growth and development. Another challenge is promoting economic development and cooperation among member countries, particularly in the areas of agriculture, services and intellectual property.
- The WTO's dispute settlement mechanism also needs strengthening to ensure that trade disputes are resolved in a fair and timely manner. Furthermore, the WTO must adapt to the rapidly evolving digital economy, which presents both opportunities and challenges for international trade. This includes addressing issues such as e-commerce, digital payments and data protection.
- To address these challenges, the WTO is exploring new approaches and initiatives, such as plurilateral agreements and negotiations on e-commerce, services and investment facilitation. Additionally, the WTO is working to strengthen its cooperation with other international organizations, such as the International Monetary Fund and the World Bank, to promote global economic growth and development.

4.2 Treaties, Conventions and Agreements**1. Paris convention :**

- The Paris Convention is a landmark international treaty that provides a framework for the protection of industrial property rights, including patents, trademarks and designs. Signed in 1883, the Convention has been ratified by 177 member countries, making it one of the most widely adopted international intellectual property treaties. The Paris Convention establishes a set of common rules and principles for the protection of industrial property rights, ensuring that creators and innovators are protected and incentivized to develop new ideas and technologies.
- The Paris convention covers all forms of industrial property, like trademarks, patents, industrial design, GI, trade names and the prevention of unfair competition.

- The most important goals are,
 - a. Prevent the unforeseen loss of patents eligibility publishing 81 Patent application, taking part in international exhibitions before applying Patent application.
 - b. To an extent, harmonise the various patent laws of the various countries.
- The Convention provides several key protections, including the right of priority, which allows applicants to file for protection in one country and then file for protection in other countries within a certain timeframe while maintaining the original filing date. The Convention also establishes the principle of national treatment, which requires member countries to treat foreign applicants for industrial property rights in the same way as domestic applicants. Additionally, the Paris Convention prohibits member countries from requiring compulsory licenses for patents, except in certain limited circumstances.
- Overall, the Paris Convention plays a crucial role in promoting innovation, creativity and economic development by providing a framework for the protection of industrial property rights. By establishing common rules and principles for the protection of patents, trademarks and designs, the Convention helps to facilitate international trade and investment, while also encouraging the development of new technologies and ideas.

2. Madrid protocol :

- The Madrid Protocol is a ground - breaking international treaty that revolutionizes the process of registering trademarks globally. Signed in 1891 and ratified by 104 member countries, the Madrid Protocol enables trademark owners to register their trademarks in multiple countries through a single application, simplifying the process and reducing costs. This streamlined approach allows businesses to expand their brand presence worldwide, while also providing a safeguard against unauthorized use of their trademarks.
- The Madrid Protocol operates through the International Bureau of the World Intellectual Property Organization (WIPO), which serves as the central authority for receiving and processing international trademark applications. When a trademark owner files an application under the Madrid Protocol, they can designate multiple countries in which they seek protection. The International Bureau then reviews the application and transmits it to the

- designated countries, which examine the application according to their national laws and procedures.
- One of the key benefits of the Madrid Protocol is that it eliminates the need for multiple national applications, saving time, money and administrative burdens. Additionally, the Madrid Protocol provides a centralized system for managing their global trademark portfolios. Overall, the Madrid Protocol has become an essential tool for businesses seeking to protect their trademarks in the global marketplace.
 - Only a natural person or legal body affiliated with a contractual party to the agreement or protocol by establishment, residence or nationality is eligible to make an international application.
 - Only marks that have previously been filed within the trademarks house of the contractual member nations with whom the applicant has the necessary relations, known as the "office of origin," are eligible for international application.
- ### 3. Hague Agreement :
- The Hague Agreement is a pioneering international treaty that simplifies the process of registering industrial designs globally. Signed in 1925 and ratified by 74 member countries, the Hague Agreement enables designers to register their industrial designs in multiple countries through a single application, streamlining the process and reducing costs. This innovative approach allows designers to protect their creative work worldwide, while also facilitating the global dissemination of innovative designs.
 - The Hague Agreement operates through the International Bureau of the World Intellectual Property Organization (WIPO), which serves as the central authority for receiving and processing international design applications. When a designer files an application under the Hague Agreement, they can designate multiple countries in which they seek protection. The International Bureau then reviews the application and transmits it to the designated countries, which examine the application according to their national laws and procedures.
 - One of the key benefits of the Hague Agreement is that it eliminates the need for multiple national applications, saving time, money and administrative burdens. Additionally, the Hague Agreement provides a centralized system for

managing design registrations, allowing designers to easily track and maintain their global design portfolios. Furthermore, the Hague Agreement promotes the global dissemination of innovative designs, which can drive economic growth and foster creativity. Overall, the Hague Agreement has become an essential tool for designers seeking to protect their industrial designs in the global marketplace.

4. Nice Agreement :

- The Nice Agreement is an international treaty that establishes a classification system for trademarks and service marks. The Nice Agreement was signed in 1957 and has 84 member countries.
- The trademarks of contracting states are required to include the numbers of the cases of the classification to which the goods or services for which the marks are registered in official documents and publication in connection with each registration. It provides for 45 classes, out of which classes 1 to 34 are decided to goods and classes 35 to 45 belong to services.

5. Patent Cooperation Treaty (PCT) :

- The Patent Cooperation Treaty (PCT) is a groundbreaking international treaty that has revolutionized the process of seeking patent protection globally. Signed in 1970 and ratified by 153 member countries, the PCT enables inventors to file a single patent application that can be used to seek patent protection in multiple countries. This innovative approach simplifies the patent application process, reduces costs and provides a more efficient way for inventors to protect their intellectual property worldwide.
- The PCT operates through the International Bureau of the World Intellectual Property Organization (WIPO), which serves as the central authority for receiving and processing international patent applications. When an inventor files a PCT application, they can designate multiple countries in which they seek patent protection. The International Bureau then reviews the application and transmits it to the designated countries, which examine the application according to their national patent laws and procedures.
- One of the key benefits of the PCT is that it provides a centralized and streamlined process for seeking patent protection globally. This approach eliminates the need for multiple national patent applications, saving time, money and administrative burdens. Additionally, the PCT provides a

preliminary examination of the patent application, which can help inventors determine the patentability of their invention before proceeding with national phase applications. Overall, the PCT has become an essential tool for inventors and businesses seeking to protect their intellectual property worldwide.

6. Lisbon Agreement :

- The Lisbon Agreement is an international treaty that establishes a system for the international registration of appellations of origin. The Lisbon Agreement was signed in 1958 and has 28 member countries.

7. Locarno Agreement :

- The Locarno Agreement is a significant international treaty that has standardized the classification system for industrial designs worldwide. Signed in 1968 and ratified by 74 member countries, the Locarno Agreement establishes a harmonized system for classifying industrial designs, facilitating the registration and protection of these designs globally. This classification system provides a common language and framework for industrial design registration, enabling designers, businesses and intellectual property offices to efficiently identify and categorize designs.
- The Locarno Agreement's classification system consists of 32 classes, covering a wide range of industrial design fields, from furniture and textiles to machinery and electrical equipment. Each class is further divided into subclasses, providing a detailed and nuanced system for categorizing industrial designs. By adopting this standardized classification system, member countries have simplified the process of registering and protecting industrial designs, reducing administrative burdens and facilitating international cooperation.
- The Locarno Agreement has far-reaching implications for designers, businesses and intellectual property offices worldwide. By providing a harmonized classification system, the Agreement enables designers to more easily protect their creations globally, promoting innovation and creativity. Additionally, the Agreement facilitates the exchange of information and best practices among member countries, fostering international cooperation and collaboration in the field of industrial design protection.

8. Strasbourg Agreement :

- The Strasbourg Agreement creates a mechanism for classifying patents. The Strasbourg Agreement, which was signed in 1971, now includes 61 member nations.
- The Locarno Agreement of 1968 underwent changes in 1979. One representative from every of the union's member states is present in the assembly that this agreement has formed within the union.

9. Vienna Agreement :

- The Vienna Agreement is a significant international treaty that has standardized the classification system for figurative elements of marks, including trademarks, service marks and other types of marks. Signed in 1973 and ratified by 32 member countries, the Vienna Agreement establishes a harmonized system for categorizing and identifying the figurative elements of marks, such as logos, symbols and designs. This classification system provides a common language and framework for intellectual property offices, trademark attorneys and businesses to efficiently identify and categorize the figurative elements of marks.
- The Vienna Agreement's classification system consists of a detailed taxonomy of figurative elements, including categories such as animals, plants, geometric shapes and human figures. Each category is further divided into subcategories, providing a nuanced and detailed system for categorizing figurative elements. By adopting this standardized classification system, member countries have simplified the process of registering and searching trademarks, reducing administrative burdens and facilitating international cooperation.
- The Vienna Agreement has far-reaching implications for intellectual property offices, trademark attorneys and businesses worldwide. By providing a harmonized classification system, the Agreement enables more efficient and accurate searching and registration of trademarks, reducing the risk of confusion and conflict between similar marks. Additionally, the Agreement facilitates the exchange of information and best practices among member countries, fostering international cooperation and collaboration in the field of trademark protection.

10. Budapest Treaty :

- The Budapest Treaty is an international treaty that establishes a system for the international recognition of deposits of microorganisms for patent purposes. The Budapest Treaty was signed in 1977 and has 83 member countries.
- A patent cannot be awarded until the innovation is disclosed. An invention is usually disclosed through a written description. In cases when an invention is an organism that is not typically accessible to the general public, disclosure must be done by submitting a specimen of the microorganisms, disclosure specialized institution rather than in writing.

11. Nairobi Treaty :

- The Nairobi Treaty is a unique international treaty that provides a specialized system for the protection of the Olympic symbol, a globally recognized emblem of excellence and international unity. Signed in 1981 and ratified by 51 member countries, the Nairobi Treaty aims to safeguard the integrity and exclusivity of the Olympic symbol, preventing its unauthorized use and protecting the interests of the International Olympic Committee (IOC). By establishing a standardized system for protecting the Olympic symbol, the Nairobi Treaty promotes the values of the Olympic Movement, including friendship, solidarity and fair play.
- The Nairobi Treaty requires member countries to take legislative and administrative measures to prevent the unauthorized use of the Olympic symbol, including its reproduction, imitation or modification. The Treaty establishes a system for cooperation and coordination among member countries to prevent the misuse of the Olympic symbol, including the exchange of information and best practices. By providing a robust framework for protecting the Olympic symbol, the Nairobi Treaty helps to maintain the integrity and value of the Olympic brand, which is recognized and respected worldwide.
- The Nairobi Treaty has significant implications for the International Olympic Committee, national Olympic committees and businesses that use the Olympic symbol. By providing a standardized system for protecting the Olympic symbol, the Treaty helps to prevent unauthorized use and protects the interests of the IOC and its partners. Additionally, the Nairobi Treaty promotes the values of the Olympic Movement, including excellence, friendship and respect, which are essential for promoting international understanding and cooperation.

In conclusion, the World Intellectual Property Organization (WIPO) and the World Trade Organization (WTO) play crucial roles in promoting and protecting Intellectual Property Rights (IPRs) globally. The various treaties, conventions and agreements, including the Paris Convention, Madrid Protocol, Hague Agreement, Nice Agreement, Patent Cooperation Treaty (PCT), Lisbon Agreement, Locarno Agreement, Strasbourg Agreement, Vienna Agreement, Budapest Treaty and Nairobi Treaty, provide a comprehensive framework for protecting different types of IPRs, such as patents, trademarks, industrial designs and copyrights. These international agreements facilitate cooperation among countries, promote innovation and creativity and ensure that IPRs are protected and enforced globally. By understanding these treaties and agreements, individuals, businesses and governments can navigate the complex landscape of IPRs and make informed decisions about protecting and promoting their intellectual property. Ultimately, the effective protection and promotion of IPRs are essential for driving innovation, economic growth and cultural development in the global economy.

4.3 Multiple Choice Questions

Q.1 What is the primary function of the World Intellectual Property Organization (WIPO)?

- ☐ a To promote free trade and economic cooperation.
- ☐ b To provide a framework for international trade.
- ☐ c To promote the use and protection of intellectual property worldwide.
- ☐ d To resolve trade disputes between countries.

Q.2 Which international treaty establishes a system for the international registration of industrial designs?

- ☐ a Hague agreement
- ☐ b Madrid protocol
- ☐ c Paris convention
- ☐ d Locarno agreement

Q.3 What is the purpose of the Patent Cooperation Treaty (PCT)?

- ☐ a To establish a system for the international registration of trademarks.
- ☐ b To provide a framework for the protection of industrial designs.

- ☐ c To enable inventors to file a single patent application for multiple countries.
- ☐ d To promote the use and protection of copyrights.

Q.4 Which international treaty establishes a system for the international recognition of deposits of microorganisms for patent purposes?

- ☐ a Budapest treaty
- ☐ b Nairobi treaty
- ☐ c Lisbon agreement
- ☐ d Strasbourg agreement

Q.5 What is the primary function of the World Trade Organization (WTO)?

- ☐ a To promote the use and protection of intellectual property worldwide.
- ☐ b To provide a framework for international trade.
- ☐ c To resolve trade disputes between countries.
- ☐ d To promote economic development and cooperation among member countries.

Q.6 Which international treaty establishes a classification system for figurative elements of marks?

- ☐ a Vienna agreement
- ☐ b Locarno agreement
- ☐ c Strasbourg agreement
- ☐ d Nice agreement

Q.7 What is the purpose of the Madrid Protocol?

- ☐ a To establish a system for the international registration of industrial designs.
- ☐ b To provide a framework for the protection of patents.
- ☐ c To enable trademark owners to register their trademarks in multiple countries through a single application.
- ☐ d To promote the use and protection of copyrights.

Q.8 Which international treaty provides a specialized system for the protection of the Olympic symbol?

- ☐ a Nairobi treaty
- ☐ b Lisbon agreement
- ☐ c Locarno agreement
- ☐ d Strasbourg agreement

Q.9 What is the primary function of the Paris Convention?

- ☐ a To establish a system for the international registration of trademarks.

- ☐ b To provide a framework for the protection of industrial designs.
- ☐ c To establish a system for the international protection of copyright.
- ☐ d To promote the use and protection of a classification system for patents?

Q.10 Which international treaty establishes a classification system for patents?

☐ a Strasbourg agreement ☐ b Locarno agreement

- ☐ c Vienna agreement ☐ d Nice agreement

Answer Keys for Multiple Choice Questions

Q.1	c	Q.2	a	Q.3	c	Q.4	a	Q.5	b
Q.6	a	Q.7	c	Q.8	a	Q.9	c	Q.10	a

4.4 Short Questions and Answers

Q.1 What is WIPO's mandate?

Ans.: To promote the use and protection of intellectual property worldwide.

Q.2 What is WTO's main objective?

Ans.: To promote free trade and economic cooperation among its member countries.

Q.3 What is the Paris convention?

Ans.: An international treaty that provides a framework for the protection of industrial property rights.

Q.4 What is the Madrid protocol?

Ans.: An international treaty that enables trademark owners to register their trademarks in multiple countries through a single application.

Q.5 What is the Hague agreement?

Ans.: An international treaty that simplifies the process of registering industrial designs globally.

Q.6 What is the Nice agreement?

Ans.: An international treaty that establishes a classification system for trademarks and service marks.

Q.7 What is the Patent Cooperation Treaty (PCT)?

Ans.: An international treaty that enables inventors to file a single patent application that can be used to seek patent protection in multiple countries.

Q.8 What is the Lisbon agreement?

Ans.: An international treaty that establishes a system for the international registration of appellations of origin.

Q.9 What is the Locarno agreement?

Ans.: An international treaty that standardizes the classification system for industrial designs worldwide.

Q.10 What is the Strasbourg agreement?

Ans.: An international agreement that creates a mechanism for classifying patents.

Q.11 What is the Vienna agreement?

Ans.: An international treaty that standardizes the classification system for figurative elements of marks.

Q.12 What is the Budapest treaty?

Ans.: An international treaty that establishes a system for the international recognition of deposits of microorganisms for patent purposes.

Q.13 What is the Nairobi treaty?

Ans.: An international treaty that provides a specialized system for the protection of the Olympic symbol.

Q.14 What are the different types of intellectual property rights?

Ans.: Patents, trademarks, industrial designs, copyrights and geographical indications.

Q.15 Why are intellectual property rights important?

Ans.: They promote innovation, creativity, and economic growth, while also protecting the rights of creators and inventors.

4.5 Descriptive Questions and Answers

Q.1 What is the significance of the Paris convention in the context of intellectual property rights?

Ans.: The Paris convention is a landmark international treaty that provides a framework for the protection of industrial property rights, including patents, trademarks and designs. Signed in 1883, the convention has been ratified by 177 member countries, making it one of the most widely adopted international intellectual property treaties. The Paris convention

establishes a set of common rules and principles for the protection of industrial property rights, ensuring that creators and innovators are protected and incentivized to develop new ideas and technologies.

Q.2 How does the Madrid protocol simplify the process of registering trademarks globally?

Ans.: The Madrid protocol is a groundbreaking international treaty that revolutionizes the process of registering trademarks globally. Signed in 1891 and ratified by 104 member countries, the Madrid protocol enables trademark owners to register their trademarks in multiple countries through a single application, simplifying the process and reducing costs. This streamlined approach allows businesses to expand their brand presence worldwide, while also providing a safeguard against unauthorized use of their trademarks.

Q.3 What is the purpose of the Patent Cooperation Treaty (PCT)?

Ans.: The Patent Cooperation Treaty (PCT) is a groundbreaking international treaty that has revolutionized the process of seeking patent protection globally. Signed in 1970 and ratified by 153 member countries, the PCT enables inventors to file a single patent application that can be used to seek patent protection in multiple countries. This innovative approach simplifies the patent application process, reduces costs and provides a more efficient way for inventors to protect their intellectual property worldwide.

Q.4 How does the Locarno agreement standardize the classification system for industrial designs?

Ans.: The Locarno agreement is a significant international treaty that has standardized the classification system for industrial designs worldwide. Signed in 1968 and ratified by 74 member countries, the Locarno agreement establishes a harmonized system for classifying industrial designs, facilitating the registration and protection of these designs globally. This classification system provides a common language and framework for industrial design registration, enabling designers, businesses and intellectual property offices to efficiently identify and categorize designs.

Q.5 What is the purpose of the Budapest treaty?

Ans.: The Budapest treaty is an international treaty that establishes a system for the international recognition of deposits of microorganisms for patent purposes. Signed in 1977 and ratified by 83 member countries, the Budapest treaty aims to facilitate the patenting of inventions that involve microorganisms, which are often difficult to describe in written form. By providing a system for the international recognition of microorganism deposits, the Budapest treaty promotes innovation and cooperation in the field of biotechnology.

Q.6 How does the Nairobi treaty protect the olympic symbol?

Ans.: The Nairobi treaty is a unique international treaty that provides a specialized system for the protection of the olympic symbol, a globally recognized emblem of excellence and international unity. Signed in 1981 and ratified by 51 member countries, the Nairobi treaty aims to safeguard the integrity and exclusivity of the olympic symbol, preventing its unauthorized use and protecting the interests of the International Olympic Committee (IOC).

Q.7 What is the significance of the World Intellectual Property Organization (WIPO) in promoting and protecting intellectual property rights?

Ans.: The World Intellectual Property Organization (WIPO) is a specialized agency of the United Nations responsible for promoting and protecting intellectual property rights worldwide. WIPO plays a crucial role in promoting innovation, creativity and economic development by providing a framework for the protection of intellectual property rights. WIPO administers several international treaties and agreements, including the Paris convention, the madrid protocol and the Patent Cooperation Treaty (PCT).

Q.8 How does the World Trade Organization (WTO) promote free trade and economic cooperation among its member countries?

Ans.: The World Trade Organization (WTO) is an international organization that promotes free trade and economic cooperation among its 164 member countries. The WTO provides a framework for international trade, sets rules for trade between nations and resolves trade disputes. The WTO's agreements and treaties, including the General Agreement on Tariffs and Trade (GATT) and the agreement on Trade-Related aspects of Intellectual Property Rights (TRIPS), promote economic growth, development and cooperation among member countries.

Q.9 What is the purpose of the Hague agreement?

Ans.: The Hague agreement is a significant international treaty that simplifies the process of registering industrial designs globally. Signed in 1925 and ratified by 74 member countries, the Hague agreement enables designers to register their industrial designs in multiple countries through a single application, streamlining the process and reducing costs. This innovative approach allows designers to protect their creative work worldwide, while also facilitating the global dissemination of innovative designs.

Q.10 What is the role of the World Intellectual Property Organization (WIPO) in promoting and protecting intellectual property rights (IPRs) globally?

Ans.: The World Intellectual Property Organization (WIPO) plays a crucial role in promoting and protecting intellectual property rights (IPRs) globally. WIPO's mandate

includes promoting the development of international intellectual property laws, providing technical assistance to developing countries and facilitating international cooperation on intellectual property matters. WIPO administers several treaties and conventions related to IP, including the Paris convention, Berne convention and Patent Cooperation Treaty (PCT). By providing a framework for international cooperation on IP matters, WIPO helps to promote innovation, creativity and economic development.

Q.11 Describe the key features and benefits of the Madrid protocol, an international treaty that simplifies the process of registering trademarks globally.

Ans. : The Madrid protocol is a groundbreaking international treaty that simplifies the process of registering trademarks globally. Signed in 1891 and ratified by 104 member countries, the Madrid protocol enables trademark owners to file a single application that can be used to seek trademark protection in multiple countries. This streamlined approach eliminates the need for multiple national applications, saving time, money and administrative burdens. The Madrid protocol operates through the International Bureau of WIPO, which serves as the central authority for receiving and processing international trademark applications.

Q.12 What is the significance of the Patent Cooperation Treaty (PCT) in promoting innovation and creativity globally?

Ans. : The Patent Cooperation Treaty (PCT) is a groundbreaking international treaty that has revolutionized the process of seeking patent protection globally. Signed in 1970 and ratified by 153 member countries, the PCT enables inventors to file a single patent application that can be used to seek patent protection in multiple countries. This innovative approach simplifies the patent application process, reduces costs and provides a more efficient way for inventors to protect their intellectual property worldwide. By providing a centralized and streamlined process for seeking patent protection globally, the PCT promotes innovation and creativity, driving economic growth and development.

Q.13 Describe the key features and benefits of the Hague agreement, an international treaty that simplifies the process of registering industrial designs globally.

Ans. : The Hague agreement is a pioneering international treaty that simplifies the process of registering industrial designs globally. Signed in 1925 and ratified by 74 member countries, the Hague Agreement enables designers to file a single application that can be used to seek design protection in multiple countries. This streamlined approach eliminates the need for multiple national applications, saving time, money and administrative burdens.

The Hague agreement operates through the International Bureau of WIPO, which serves as the central authority for receiving and processing international design applications.

Q.14 What is the role of the World Trade Organization (WTO) in promoting free trade and economic cooperation among its member countries?

Ans. : The World Trade Organization (WTO) plays a crucial role in promoting free trade and economic cooperation among its 164 member countries. The WTO provides a framework for international trade, sets rules for trade between nations and resolves trade disputes. The WTO's agreements and treaties, including the General Agreement on Tariffs and Trade (GATT) and the agreement on Trade-Related aspects of Intellectual Property Rights (TRIPS), promote economic growth, development and cooperation among member countries. By providing a rules-based system for international trade, the WTO helps to reduce trade barriers, promote economic integration and increase global economic growth and development.